No. 23-55431

IN THE UNITED STATES COURT OF APPEALS
FOR THE NINTH CIRCUIT

B & L PRODUCTIONS, INC., et al.,
Plaintiffs-Appellants,
v.
GAVIN NEWSOM, in his official capacity as Governor of the State of California and in his personal capacity, et al.,
Defendants-Appellees.

On Appeal from the United States District Court for the Southern District of California
D.C. No. 3:21-cv-01718-AJB-DDL; Honorable Anthony J. Battaglia

APPELLANTS' REPLY BRIEF

C.D. Michel
Anna M. Barvir
Tiffany D. Cheuvront
MICHEL & ASSOCIATES, P.C.
180 E. Ocean Blvd., Suite 200
Long Beach, CA 90802
cmichel@michellawyers.com
(562) 216-4444

Donald Kilmer
Law Offices of Donald Kilmer, APC
14085 Silver Ridge Rd.
Caldwell, Idaho 83607
don@dklawoffice.com
(408) 264-8489

TABLE OF CONTENTS

	Page
TABLE OF AUTHORITIES	ii
INTRODUCTION	1
ARGUMENT	2
I. The District Court's Rule 12 Dismissal of Appellants' Well-pled Second Amendment Claim Is Reversible Error	2
A. The District Court Improperly Relied on *Texeira* to Short-circuit the Text-and-History Based Analysis Required Under *Bruen*	2
CONCLUSION	8
STATEMENT OF RELATED CASES	9
CERTIFICATE OF COMPLIANCE	10

TABLE OF AUTHORITIES

Cases: **Page(s)**

B&L Prods., Inc. v. Newsom,
No. 8:22-cv-01518, 2023 WL 7132054 (C.D. Cal. Oct. 30, 2023) 3, 6, 7, 8

Boland v. Bonta,
No. 22-01421, 2023 WL 2588565 (C.D. Cal. Mar. 20, 2023) 3

Central Hudson Gas & Electric Commission v. Public Services Commission,
447 U.S. 557 (1980) 1

District of Columbia v. Heller,
554 U.S. 570 (2008) 3, 4, 5

Jackson v. City & County of San Francisco,
746 F.3d 953 (9th Cir. 2014) 3

New York State Rifle & Pistol Ass'n v. Bruen,
__ U.S. __, 142 S. Ct. 2111 (2022) 1, 2, 5

Renna v. Bonta,
No. 20-2190, 2023 WL 2846937 (S.D. Cal. Apr. 3, 2023) 3

Teixeira v. County of Alameda,
873 F.3d 670 (9th Cir. 2017) (en banc) 3, 4, 5, 6, 7

United States v. Marzzarella,
614 F.3d 85 (3d Cir. 2010) 4

Constitutional Provisions:

U.S. Const. amend. I 1

U.S. Const. amend. II ..... *passim*

Statutes:

Assembly Bill 893 ..... 1, 3, 8

Rules:

Fed. R. Civ. P. 12 ..... 1, 8

Other Authorities:

David B. Kopel, Does the Second Amendment Protect Firearms Commerce?, 127 Harv. L. Rev. F. 230 (2014) 4

INTRODUCTION

As Appellants have shown, the district court evaded its duty to fully analyze whether AB 893 comports with the text and history of the Second Amendment as it was required to do under the Supreme Court's recent decision in *New York State Rifle & Pistol Ass'n v. Bruen*, __ U.S. __, 142 S. Ct. 2111 (2022). Instead, the court casually dismissed Appellants' claims offhand because they had not alleged the total destruction of their right to acquire arms. As for the court's treatment of Appellants' First Amendment claims, and even setting aside (but not waiving) their pure speech claims, the district court failed to fully apply the commercial speech doctrine to Appellants' claims as required by *Central Hudson Gas & Electric Commission v. Public Services Commission*, 447 U.S. 557 (1980). Both are plain errors that call for summary reversal.

Appellant's equal protection claims are, at a minimum, cross-relevant to their First Amendment claims on a theory of animus. The differential treatment by state actors on a matter of fundamental rights is actionable under the Equal Protection clause. Because unequal treatment is a question of fact, and because this claim was dismissed on a Rule 12 motion, the trial court committed reversible error.

Aside from introducing argument and evidence that was not considered by the district court below and improperly injecting factual disputes into this appeal of Rule 12 dismissal of Appellants' claims, the State's responsive brief does little to

rebut

ARGUMENT

I. The District Court's Rule 12 Dismissal of Appellants' Well-pled Second Amendment Claim Is Reversible Error

A. The District Court Improperly Relied on *Texeira* to Short-circuit the Text-and-History Based Analysis Required Under *Bruen*

As Appellants' Opening Brief explains, under the Supreme Court's recent decision in *Bruen*, 142 S. Ct. at 2117-18, it is no longer appropriate for courts to subject Second Amendment claims to multi-step, interest-balancing tests, like intermediate scrutiny. A.O.B.16. Of course, the right to keep and bear arms must be implicated. *Bruen*, 142 S. Ct. at 2129. But, in most cases, this requires no in-depth analysis. The "plain text" of the Amendment controls. If the restricted conduct is covered by the Second Amendment's "plain text," the conduct is presumptively protected, *id.* at 2126, 2129-30, and "the government must affirmatively prove that its firearms regulation is part of the historical tradition that delimits the outer bounds of the right to keep and bear arms," *id.* at 2127.

It can hardly be disputed that the conduct Appellants seek to engage in at gun shows, including sales, is within the Second Amendment's "plain text." A.O.B.17-21. The operative complaint alleges that Appellants, as gun show attendees, vendors, and promoters, seek to engage in otherwise lawful activities

related to commerce in firearms, ammunition, and firearm parts. 2-ER-135-41. "Because the Second Amendment protects the individual's right to keep and bear arms in self-defense, it also must protect the attendant rights of gun ownership that make keeping and bearing arms meaningful." *B&L Prods., Inc. v. Newsom*, No. 8:22-cv-01518, 2023 WL 7132054 *13 (C.D. Cal. Oct. 30, 2023).[1] This includes the right to acquire lawful firearms and ammunition, as this circuit's precedents have established. *See, e.g.*, *Teixeira*, 873 F.3d at 677-78 (discussing authorities acknowledging the right to acquire arms); *Jackson v. City & Cnty. of San Francisco*, 746 F.3d 953, 967-68 (9th Cir. 2014) (hollow-point ammunition). At a minimum, California's gun show ban implicates the right of acquisition.

The district court failed to hold the State to its burden under *Bruen* and refused to perform the required historical analysis, holding instead that Appellants' Second Amendment claim necessarily fails because they did not allege that AB 893

[1] Citing *District of Columbia v. Heller*, 554 U.S. 570, 629 (2008); *Jackson v. City & Cnty. of San Francisco*, 746 F.3d 953, 697 (9th Cir. 2014) (extending Second Amendment to the ammunition purchases because "without bullets, the right to bear arms would be meaningless"); *Teixeira v. County of Alameda*, 873 F.3d 670, 677 (9th Cir. 2017) (en banc) ("[T]he core Second Amendment right to keep and bear arms for self-defense 'wouldn't mean much' without the ability to acquire arms.") (citing *Heller*, 554 U.S. at 617-18); *Boland v. Bonta*, No. 22-01421, 2023 WL 2588565, at *4 (C.D. Cal. Mar. 20, 2023) (preliminarily enjoining a California law preventing the "purchase [of] state-of-the-art handguns for self-defense" on Second Amendment grounds); *Renna v. Bonta*, No. 20-2190, 2023 WL 2846937 (S.D. Cal. April 3, 2023) (similar).

"amount[s] to a prohibition of" the right to acquire guns or ammunition. 1-ER-11. The State, arguing that this Court's en banc decision in *Teixeira* is still good law because its analysis was rooted in text, history, and tradition, argues that the district court got this right. Appellees' Br. ("A.B") 16-17 (discussing *Teixeira v. County of Alameda*, 873 F.3d 670). The State is wrong.

First, *Teixeira*'s textual and history analysis was limited to its analysis of whether there is an independent right to sell firearms, not to whether there is a right to acquire them. 873 F.3d at 682-90.[2] The Court summarily rejected *Teixeira*'s attempt to assert a "right to acquire arms on behalf of his potential customers," not because there was no textual or historical basis for claiming such a right exists, but because he had not shown that his customers' ability to acquire arms in the county

[2] To the extent that *Teixeira* relied on "history and tradition" to hold that there is no right to sell arms, it was simply wrong. "The right to commerce in firearms was one of the rights at issue during the American Revolution, and it is a right guaranteed by the Second Amendment…." David B. Kopel, *Does the Second Amendment Protect Firearms Commerce?*, 127 Harv. L. Rev. F. 230, 234-35 (2014). That is not to say that no regulation on such conduct can survive judicial scrutiny. To be sure, *Heller* acknowledged the presumptive validity of at least some "laws imposing conditions and qualifications on the commercial sale of firearms." 554 U.S. at 626-27. But, "to uphold the constitutionality of a law imposing a condition on the commercial sale of firearms, a court necessarily must examine the nature and extent of the imposed condition." *United States v. Marzzarella*, 614 F.3d 85, 92 n.8 (3d Cir. 2010). If the sale of firearms fell outside the scope of the Second Amendment, "it would follow that there would be no constitutional defect in prohibiting the commercial sale of firearms. Such a result would be untenable under *Heller*." *Id.*

had been completely snuffed out. *Id.* at 678-81. But tests requiring plaintiffs to prove that a challenged law imposes some arbitrarily severe burden or "meaningful" restriction, *Teixeira*, 873 F.3d at 680, on their Second Amendment rights have no place in a post-*Bruen* landscape—if they were ever appropriate. Insisting on such a showing deceptively smuggles burden and interest balancing into the analysis in direct conflict with *Bruen*'s (and *Heller*'s) clear commands. *See Bruen*, 142 S. Ct. at 2129-30 (discussing *Heller*, 554 U.S. at 634). The district court's rejection of *Bruen*'s text-and-history analysis in favor of *Teixeira*'s abrogated "meaningful[] restrict[ion]" test is reversible error.

What's more, in *Teixeira*, this Court held that "gun buyers have no right to have a gun store in a particular location, at least as long as their access is not meaningfully constrained." 873 F.3d at 680. *Bruen*'s "plain text" analysis does not support construing the right so narrowly. But even if it did, *Teixeira*'s straw-man description of a gun buyer's purported "right to have a gun store in a particular location" conflates the restricted conduct with the restriction itself. This is a critical error. The restricted conduct is not the sale and purchase of firearms at a gun store (or gun show) in a preferred place, but the sale and purchase of firearms, full stop. The restriction is a ban on that conduct in certain places. Because the "plain text" protects the individual right to acquire firearms, ammunition, and firearm parts, the government must prove that its "place" restriction is "consistent with this Nation's historical tradition of firearm regulation," *Bruen*, 142 S. Ct. 2126. If it can, the

restriction would be constitutional—not because there is no "right to have a gun store in a particular location," but because the government had some historical justification for restrictions on sales in certain spaces.

Finally, even if one accepts that *Teixeira* were correct when it was decided and is still good law after *Bruen*, it is not helpful to the resolution of Appellants' Second Amendment claims, as the Central District of California recently observed in the nearly identical *B&L Orange County* case. *See B&L Orange Cnty.*, 2023 WL 7132054, *14-15. The *Teixeira* en banc panel dismissed the plaintiffs' Second Amendment claim because they had not alleged that the restriction prevented them from acquiring firearms anywhere in the county. 873 F.3d at 678. "The Ninth Circuit reached that conclusion because there were several other gun stores within the county at which residents could purchase firearms and ammunition, including one gun store that was '600 feet away from the proposed site of Teixeira's planned store.' " *B&L Orange Cnty.*, 2023 WL 7132054, *14 (quoting *Teixeira*, 873 F.3d at 679).

But here, as in *B&L Orange County*, Appellants allege several facts that distinguish this case from *Teixeira*. *See* 2-ER-135, 156-59; *see also B&L Orange Cnty.*, 2023 WL 7132054, *14-15. For instance, they allege that gun shows are different from gun stores because they are "cultural marketplaces," 2-ER-157, where participants "exchange … products and ideas, knowledge, services, education, entertainment, and recreation," 2-ER-156-57. In short, a gun show is a

"celebration of America's 'gun culture' that is a natural and essential outgrowth of the constitutional rights that flow from the Second Amendment." 2-ER-156. Participating in that culture, not just exchanging guns for money, "is an important reason people attend B&L gun shows." 2-ER-158. Appellants also allege that they and many others attend gun shows "to exchange knowledge with experienced dealers and firearm enthusiasts that they cannot get anywhere else." 2-ER-158 (emphasis added).

And, Appellants claim, that "[b]ecause of its large size and unique urban location, the Fairgrounds is a unique, publicly owned venue. There is no other public or private venue of similar size in the area." 2-ER-159. Similarly:

> Because California prohibits the building of similar venues within their districts as a way to prevent competition for available space, there are no venues in the area that offer comparable space and parking needed for gun show events. Plaintiff Crossroads has thus been unable to find a suitable alternate location to the Fairgrounds. 2-ER-175.

Taking these factual allegations as true—as the Court must on a motion to dismiss—it is clear that *Teixeira* is not on point. Indeed, to paraphrase *B&L Orange County*, "the instant action is distinct because there is no alternative gun show in [the district], let alone within '600 feet' of the [Del Mar] Fairgrounds." 2023 WL 7132054, *15 (citing *Teixeira*, 873 F.3d at 679). The existence of brick-and-mortar gun stores within San Diego county makes no difference because California "fail[s]

to identify how the general experience of [Appellants'] gun shows can be replicated by alternative forums in the area." *Id.* at *14 (footnote omitted).

Because Appellants have alleged that AB 893 restricts conduct protected by the "plain text" of the Second Amendment, *Bruen* demands that California prove that the ban is part of the history and tradition of firearm regulation in this country dating back to the Founding. As explained below, and admitted by the government, A.B.29, n.9, this raises a factual question that the district court cannot decide on a motion to dismiss. Nor can this Court decide the issue, in the first instance, on appeal. *See* A.B.29, n.9.

CONCLUSION

For these reasons, the district court committed reversible error by dismissing the case under Rule 12. The Court should reverse that order and remanded for further proceedings.

Respectfully submitted,

s/ Anna M. Barvir
ANNA M. BARVIR
Attorneys for Plaintiffs-Appellants

December 1, 2023

STATEMENT OF RELATED CASES

9th Cir. Case Number(s) 23-55431

The undersigned attorney or self-represented party states the following:

☐ I am unaware of any related cases currently pending in this court.

☐ I am unaware of any related cases currently pending in this court other than the case(s) identified in the initial brief(s) filed by the other party or parties.

☒ I am aware of one or more related cases currently pending in this court. The case number and name of each related case and its relationship to this case are:

No. 23-3793, *B&L Productions, Inc., et al., v. Newsom, et al.* (This related case, filed on November 27, 2023, is an interlocutory appeal of an order granting plaintiffs' motion for preliminary injunction and enjoining the enforcement of Senate Bill 264 (applicable to the Orange County Fair & Event Center) and Senate Bill 915 (applicable to all state-owned property), two state laws that are nearly identical to the law challenged in this case. After extensive briefing, including two rounds of supplemental briefing, and a two-hour hearing, the Central District held that the plaintiffs (including several appellants in this case) were likely to prevail on the merits of their First and Second Amendment claims. Pursuant to this Court's earlier direction, Appellants intend to renew their request to have these cases heard together.).

s/ Anna M. Barvir	December 1, 2023
Signature	Date

CERTIFICATE OF COMPLIANCE

9th Cir. Case Number(s) 23-55431

I am the attorney or self-represented party.

This brief contains 1,964 words, including 0 words manually counted in any visual images, and excluding the items exempted by FRAP 32(f). The brief's type size and typeface comply with FRAP 32(a)(5) and (6).

I certify that this brief (select only one):

☒ complies with the word limit of Cir. R. 32-1.

☐ is a cross-appeal brief and complies with the word limit of Cir. R. 28.1-1.

☐ is an amicus brief and complies with the word limit of FRAP 29(a)(5), Cir. R. 29-2(c)(2), or Cir. R. 29-2(c)(3).

☐ is for a death penalty case and complies with the word limit of Cir. R. 32-4.

☐ complies with the longer length limit permitted by Cir. R. 32-2(b) because (select only one):

- ☐ it is a joint brief submitted by separately represented parties.
- ☐ a party or parties are filing a single brief in response to multiple briefs.
- ☐ a party or parties are filing a single brief in response to a longer joint brief.

☐ complies with the length limit designated by court order dated _____.

☐ is accompanied by a motion to file a longer brief pursuant to Cir. R. 32-2(a).

s/ Anna M. Barvir	December 1, 2023
Signature	Date